



JUSTIFICATION FOR OTHER THAN FULL AND OPEN COMPETITION

CONTROL NUMBER PANNAD-26-P-0000 029323

RS Means 2026 Network License Agreement for CostWorks CD

26 January 2026

Revision: 11 February 2026



[REDACTED]

JUSTIFICATION REVIEW DOCUMENT

FAR Part 13 Simplified Procedures

PROJECT/EQUIPMENT: RS Means 2026 Network License Agreement for CostWorks CD

CONTROL NUMBER: PANNAD-26-P-0000 029323

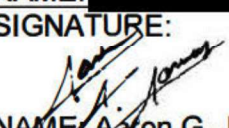
AUTHORITY: 41.U.S.C. 1901

AMOUNT: [REDACTED]

PREPARED BY: CONTRACT SPECIALIST	NAME: [REDACTED] PHONE: [REDACTED]	Date: 11 Feb. 2026
CONTRACTING OFFICER	NAME: Aaron G. Jones PHONE: 410-962-0674	Date: 11 Feb. 2026
TECHNICAL	NAME: [REDACTED] PHONE: [REDACTED]	Date: 11 Feb. 2026
REQUIREMENTS	NAME: [REDACTED] PHONE: [REDACTED]	Date: 27 January 2026

SIGNATURES ARE REQUIRED BELOW:

I have reviewed this document and find the justification adequate to support other than full and open competition.

DISTRICT SMALL BUSINESS SPECIALIST	SIGNATURE: No Review is required by the SBP/SBA for this action NAME: N/A	Date: (see signature) PHONE: N/A
PROGRAM ANALYST	SIGNATURE: [REDACTED] NAME: [REDACTED]	Date: (see signature) PHONE: [REDACTED]
ASSISTANT DISTRIC COUNSEL	SIGNATURE: [REDACTED] NAME: [REDACTED]	Date: (see signature) PHONE:
CONTRACTING OFFICER	SIGNATURE:  NAME: Aaron G. Jones	Date: (see signature) PHONE: [REDACTED]

[REDACTED]

[REDACTED]

JUSTIFICATION FOR OTHER THAN FULL AND OPEN COMPETITION

FAR Part 13 Simplified Procedures

RS Means 2026 Network License Agreement for CostWorks CD Version

1. **CONTRACTING AGENCY:** The contracting agency responsible for this action is the U.S. Army Corps of Engineers-Baltimore District.
2. **DESCRIPTION OF ACTION:** The U.S. Army Corps of Engineers, Baltimore District (USACE-CENAB), Real Property Services Field Office (RSFO) requests approval for a new contract for the purchase of 20 concurrent user licenses of the CostWorks software and Full Library (CD Version), by R. S. Means Company LLC, under the parent corporation The Gordian Group. The Government requires a December 2025 award date utilizing Fiscal Year 2026 (FY26), Operations & Maintenance (O&M) funding.
3. **DESCRIPTION OF SUPPLIES/SERVICES OR NATURE OF CONSTRUCTION:** This acquisition is for the purchase of 20 concurrent user licenses for CostWorks software and full library using the CD version. This software will provide Real Property Services Field Office Personnel the ability to: Provide timely cost estimates feedback from project stakeholders which is critical for avoiding costly changes during construction, provides a wide variety of data that allows the user to quickly and easily generate an accurate cost analysis of a new project or renovation and allow the reviewer to perform faster, more accurate and more thorough estimate reviews. Independent Government Estimates (IGE's) are an essential component for the awarding lease contracts. The estimated dollar value of this action for CostWorks CD Version with 20 concurrent licenses at a total cost of [REDACTED] with a period of performance of twelve (12) months with an option of executing an additional year to be awarded prior to 01/15/2027.
4. **AUTHORITY CITED:** 41 U.S.C. § 1901 as implemented in FAR 13.106-1(b), soliciting from a single source if the contracting officer determines that the circumstances of the contract action deem only one source reasonably available (e.g. urgency, exclusive licensing agreements, brand-name or industrial mobilization). Products and services are brand names and are proprietary to the specific provider.

5. **REASON FOR AUTHORITY CITED:**

Background: CostWorks is a commercial software provided by R.S. Means, LLC. in which they have been in the business of cost estimating for over seven decades and are known for their quality and versatility throughout the industry and is considered the industry standard for construction cost estimating in its

various print and electronic versions. R.S. Means Company, LLC is the leading publisher of current, comprehensive information on construction material, labor and equipment costs in the US and Canada. The company's products include 27 cost data guide titles, software, seminars, on-site training, and consulting services.

[REDACTED]

[REDACTED]

Impact: If a sole source award to R. S. Means Company, LLC cannot be awarded this project will not be able to be completed and will negatively impact the stakeholder.

Alternative(s): None.

6. **EFFORTS TO OBTAIN COMPETITION:** The Baltimore District, RSFO reviewed all its current contract holders and there were no firms who met the qualifications required to successfully complete the requirements of the scope of work. R. S. Means Company, LLC, is considered the industry standard, in addition other construction cost estimating software packages for this purpose are not compliant with contract documents and therefore may not be used as an alternative. This notice was posted for 15 days, with one (1) capability statement being received from [REDACTED].

7. **ACTIONS TO INCREASE COMPETITION:** Market Research is ongoing to find an equivalent construction cost estimating software provided by R.S. Means Company LLC or to obtain a license through a third-party vendor if it would provide a better value to the Government.

8. **MARKET RESEARCH:** There is historical acquisition information, which is posted at the System for Award Management, showing the R.S. Means Company, LLC is the sole source and distributor. R. S. Means offers various distribution options including purchasing through our online storefront or via internal sales representatives. There is a GSA Schedule (GS-02F-142AA) for print publications only. Many federal government agencies use sole source justification to purchase R.S. Means software products, including GSA, FEMA, US Fish and Wildlife, and various military installations. R.S. Means is also specified as a standard throughout the federal government.

9. **INTERESTED SOURCES:** The Notice of Intent was published on the sam.gov database from 18 December 2025 with the response date of 2 January 2026, under W912DR-26-Q-1B11. On December 19, 2025, one (1) capability statement was received from [REDACTED]. The capability statement was reviewed and determined to be incompatible with the requirement. The Government requires hard copy CDs while [REDACTED] offers [REDACTED] and such a platform cannot be used to fulfill this requirement. Accordingly, [REDACTED] is not considered reasonably available for this requirement.

10. **OTHER FACTS:** Not applicable

11. **TECHNICAL CERTIFICATION:**

"I certify that the supporting data under may cognizance which are included in the justification is accurate and complete to the best of my knowledge and belief."

Name: [REDACTED]

Date: [REDACTED]

Title: Technical Representative

Signature: [REDACTED]

[REDACTED]

[REDACTED]

12. **REQUIREMENTS CERTIFICATION:**

"I certify that the supporting data under may cognizance which are included in the justification is accurate and complete to the best of my knowledge and belief."

Name: [REDACTED]

Date: [REDACTED]

Title: Project Manager

Signature: [REDACTED]

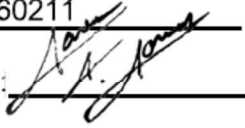
13. **FAIR AND REASONABLE COST DETERMINATION:**

"I hereby determine that the anticipated cost to the Government for these items will be fair and reasonable. This determination will be based on a thorough price analysis and comparison to the Independent Government Estimate of the submitted proposal from R.S. Means Company, LLC."

Name: Aaron G. Jones

Date: 20260211

Title: Contracting Officer

Signature: 

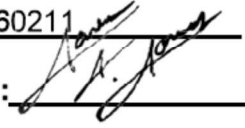
14. **CONTRACTING OFFICER CERTIFICATION:**

"I certify that this J&A is accurate and complete to the best of my knowledge and belief."

Name: Aaron G. Jones

Date: 20260211

Title: Contracting Officer

Signature: 

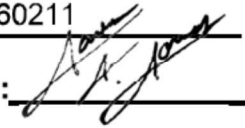
15. **APPROVAL:**

Based on the foregoing justification, I hereby approve this procurement, as defined in the Sope of Work, on an other than full and open competition basis pursuant to the authority of 41 U.S.C. § 1901 as implemented in FAR 13.106-1(b) sole source (including brand name) under the authority of the simplified procedures where the contracting officer determines that the circumstances of the contract action deem only one source reasonably available, subject to the availability of funds, and provided that the services and property herein described have otherwise been authorized for acquisition.

Name: Aaron G. Jones

Date: 20260211

Title: Contracting Officer

Signature: 

[REDACTED]